

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 12-09

CENTURY METAL RECYCLING PVT. LTD

COMPLAINANT

V.

DACON LOGISTICS, LLC DBA CODA FORWARDING, GREAT AMERICAN
ALLIANCE INSURANCE COMPANY, AVALON RISK MANAGEMENT, HAPAG
LLOYD AMERICA, INC. AND MITSUI OSK LINES

RESPONDENTS

**SUPPLEMENTAL AFFIDAVIT IN SUPPORT OF PLAINTIFF'S MOTION FOR
DEFAULT JUDGMENT**

The undersigned, being duly sworn, does hereby depose and state as follows:

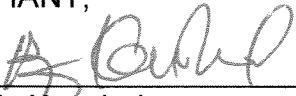
1. I am over the age of eighteen (18) years, and I believe in and understand the obligations of an oath.
2. I am a Vice President of Century Metal Recycling, Pvt. Ltd. ("Century Metal").
3. I make this affidavit based on my personal knowledge of the business records and practices of Century Metal.
4. I offer this affidavit in support of Century Metal's Motion for Default Judgment, in accordance with the Commissions Order dated April 17, 2013.
5. After Century Metal filed its Complaint with the Federal Maritime Commission, it entered into discussions with representatives for Mitsui O.S.K. Lines, Ltd ("Mitsui") Hapag-Lloyd Aktiengesellschaft ("Hapag-Lloyd") regarding the release of its containers in India.
6. Century Metal paid Mitsui and Hapag-Lloyd the amounts owed to the ocean freight carriers in order to have the containers in issue released.
7. Century Metal did not receive any monetary compensation in its settlements with Mitsui and/or Hapag-Lloyd.

8. Century Metal did not enter into settlement discussions with Great American and/or Avalon and did not receive any monetary compensation from either Great American or Avalon.

Further, affiant sayeth naught.

Dated this 19th day of April, 2013

AFFIANT,


Rajiv Kaushal
Vice President, Century Metal Recycling, Pvt. Ltd

Subscribed and sworn to before me

This 19th day of April 2013.


Notary Public

My commission expires: 11-30-2016

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